

Court No. - 3

Case :- WRIT - C No. - 18239 of 2022

Petitioner :- Shahvez Khan

Respondent :- The Managing Director, Paschimanchal Vidyut Vitran Nigam Limited And 4 Others

Counsel for Petitioner :- Rakesh Kumar Mishra

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner and learned Standing Counsel for the State-respondents.

This writ petition has been filed praying for the following reliefs:

"(i) TO ISSUE a writ, order or direction in the nature of certiorari quashing the impugned recovery citation dated 14.05.2022 (filed as Annexure No.1 to this writ petition) issued by the respondent No.5 for recovery of a sum of Rs.2,46,848/-;

(ii) TO ISSUE a writ, order or direction in the nature of mandamus directing the respondents to not to give effect to the impugned recovery citation dated 14.05.2022 (filed as Annexure No.1 to this writ petition) issued by the respondent No.5 for recovery of a sum of Rs.2,46,848/;

(iii) TO ISSUE a writ, order or direction in the nature of mandamus restraining the respondents from adopting any coercive measures against the petitioner for recovery of aforesaid amount in dispute pursuant to the impugned recovery citation dated 14.05.2022 (filed as Annexure No.1 to this writ petition) issued by the respondent No.5 and also the provisional assessment notice dated 27.08.2020 (filed as Annexure No.4 to this writ petition) issued by the respondent No.2".

Learned counsel for the respondent No 2/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is ***disposed off*** giving liberty to the petitioner to submit his/ her objection under ***Para 6.5 of U.P. Electricity Supply Code, 2005*** before the respondent No.2 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 6.7.2022

T.S.